

25STCV19367 25STCV19367

County: los-angeles

Division: Civil Law and Motion

Department: 400

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Case Number: 25STCV19367 Hearing Date: June 24, 2026 Dept: 400

MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF

CIVIL PROCEDURE § 871.26

Relief Requested:

The Court order Defendant FCA US LLC to comply

with California Code of Civil Procedure § 871.26 by producing all documents

required under subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12),

and (h)(13) and impose sanctions against Defendant.

Summary of Action:

Plaintiff

commenced the action on June 27, 2025. This is a standard Song-Beverly Consumer

Warranty action. Plaintiff filed the present motion on May 26, 2026. Defendant

has not filed an opposition. On June 17, 2026, Plaintiff filed a notice of

non-opposition.

Analysis

A.

Legal Standard

Code of Civil Procedure section

871.26 applies to “a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20.” (Code Civ. Proc., § 871.26, subd. (a).) “Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” (Code Civ. Proc., § 871.26, subd. (b).)

“The

defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): ... (6) Motor vehicle information reports, including build documentation, component information, and delivery details; (7) Entire warranty transaction history for the motor vehicle; (8) Listing of required field actions applicable to the motor vehicle; (9) Published technical service bulletins (“TSBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle; (10) Published information service bulletins (“ISBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle; ... (12) Warranty policies

and procedure manuals; (13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle..." (Code Civ. Proc., § 871.26, subd. (h).)

B.

Discussion

Here, Defendant demurred to

Plaintiff's complaint on October 27, 2025, which was Defendant's first

responsive pleading filed in this action. Therefore, Defendant's initial

disclosures were due by December 26, 2025, sixty (60) days following

Defendant's demurrer. (Code Civ. Proc., § 871.26, subd. (b).) Defendant failed

to provide complete and compliant disclosures. (Rucker Decl., ¶ 4.) Plaintiff

sent a meet and confer letter to Defendant on May 18, 2026, but Defendant did

not cure the deficiencies in its mandatory disclosures. (Rucker Decl., ¶ 5;

Exh. 2.)

Therefore, the motion to compel

initial disclosures filed by Plaintiff is granted.

C.

Sanctions

"Unless the party failing to comply

with this section shows good cause, ... a court shall impose sanctions as

follows: (1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)...." (Code Civ. Proc., § 871.26, subd. (j).)

Here,

Defendant fails to provide an opposition to this motion demonstrating good cause. Therefore, the Court must impose sanctions in the amount of \$2,500, payable within 15 business days for failure to comply with the document production requirements.

Conclusion:

Plaintiff's

motion to compel initial disclosures is granted. The Court awards Plaintiff \$2,500 in sanctions to be paid by Defendant's counsel to Plaintiff's counsel within 15 days.